

enrichment, and breach of fiduciary duty – and that each Defendant named in this cause of action is liable as a co-conspirator to those torts.” Complaint ¶ 104. The Complaint further alleges, “[t]wo or more Defendants,” including Defendant Rodney Andrews, “formed and operated a coordinated agreement[] to commit the wrongful acts alleged herein.” Complaint ¶ 107. Plaintiff also alleges Defendants’ “cooperation and unity of action show a ‘meeting of the minds,’ ” and that Defendant Rodney Andrews induced the investment and loan. Complaint ¶ 111.

Here, the cause of action for civil conspiracy alleges tortious conduct including fraud, intentional misrepresentation, conversion, unjust enrichment, and breach of fiduciary duty, but fails to allege sufficient facts as to what act or acts were performed by Defendant Rodney Andrews that furthered the common design or conspiracy in connection with these claims. The demurrer is well taken.

For the reasons noted previously, the Court will permit leave to amend.

2. CU0002221 Bill Sinor, Jr. vs. B & W Resorts, Inc., et al.

On the Court’s motion, the hearing on Defendants’ motion to compel responses to Special Interrogatories, Set One and for sanctions is continued to Friday, June 5, 2026, at 10:00 a.m., in Department 6, and the parties are directed to meet and confer as specified herein.

Legal Standard

Under Code of Civil Procedure section 2030.300(a), a court may order a party to serve a further response to an interrogatory when the court finds: “(1) An answer to a particular interrogatory is evasive or incomplete[;] (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate[; or] (3) An objection to an interrogatory is without merit or too general.”

Upon receipt of a response, the propounding party may move to compel further response if it deems an answer to a particular interrogatory is evasive or incomplete, an exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate, or an objection to an interrogatory is without merit or too general. Code Civ. Proc. § 2030.300(a). Any motion to compel further answers to interrogatories must be filed within forty-five (45) days of receipt of response, unless the parties agree to extend the time in writing. Code Civ. Proc. § 2030.300 (c). When such a motion is filed, the Court must determine whether responses are sufficient under the Code, and the burden is on the responding party to justify any objections made and/or its failure to fully answer the interrogatories. *Coy v. Sup. Ct.* (1962) 58 Cal.2d 210, 220-21; *Fairmont Ins. Co. v. Sup. Ct.* (2000) 22 Cal.4th 245, 255.

Timeliness

Plaintiff argues Defendants’ motion is untimely. Not so.

Pursuant to Code of Civil Procedure section 2030.300(c), notice of a motion to compel further responses to interrogatories must be given within 45 days of service of the verified response.

Under Code of Civil Procedure section 1010.6, two court days are added to response deadlines when legal documents are served electronically. Code Civ. Proc. § 1010.6(a)(3)(B).

Plaintiff served responses on December 19, 2025 (and reportedly sent a signature authentication on December 31 as a courtesy). Even if the Court utilizes the former date, the deadline for filing a motion to compel would be February 4, 2026 (45 days after December 19, 2025, plus 2 court days for electronic service). Defendants served and filed their motion on February 3, 2026. The motion is timely.

Meet and Confer

“A meet and confer declaration in support of a motion shall state facts showing *a reasonable and good faith attempt, either in person, by telephone, or by videoconference*, to informally resolve each issue presented by the motion.” Code Civ. Proc. § 2016.040(a) (italics added).

At bar, Defendants sent Plaintiff a meet and confer letter on January 6, 2026 regarding the alleged inadequate responses. See Schramm Decl., Ex. E. The letter only requests amended responses, and makes no mention of attempting to set up further communication with Plaintiff’s counsel. See *id.* There is no evidence that Plaintiff responded to Defendants’ meet and confer letter. Moreover, there is no evidence that the parties actually discussed the same in person or remotely. In short, there was not a sufficient and reasonable attempt by both sides to informally resolve their dispute as required.

Failing to confer or to attempt to confer “in a reasonable and good faith attempt to resolve informally any dispute concerning discovery” is a “misuse” of the discovery process and is subject to a mandatory monetary sanction. Code Civ. Proc. §§ 2023.010(i) and 2023.020. Failing to participate in the meet and confer process is also sanctionable in the amount of \$1,000.00 (after notice and an opportunity to be heard) pursuant to Code Civ. Proc. section 2023.050(a)(3).

Accordingly, the hearing on Defendants’ Motion to Compel is continued to Friday, June 5, 2026, at 10:00 a.m., in Department 6. Within seven (7) days of this order, counsel for the parties are ordered to participate in meaningful meet and confer with respect to the issues giving rise to the pending motion. Thereafter, the parties shall file a Joint Status Report, no later than two weeks prior to the scheduled hearing, limited to five (5) pages, apprising the Court of the outcome of the meet and confer efforts and setting forth in succinct fashion each party’s position as to what discovery issues remain outstanding in relation to the pending motions. The Report shall also include any request for discovery sanctions by any party. To the extent that any discovery disputes remain, the parties shall file an amended separate statement at least two weeks prior to the continued hearing date. Lastly, the Court is aware that a motion to consolidate is set for hearing in Department A on May 8, 2026 related to this matter and Case No. CU0002183. The Report shall apprise the Court of the outcome of the consolidation request.

Plaintiff Jose A. Valdovinos' motion for preliminary injunction is granted on condition that he post an undertaking of \$66,335.10 within 5 days. The temporary restraining order shall remain in effect until a preliminary injunction issues.

Legal Standard

"A preliminary injunction may be granted at any time before judgment upon a verified complaint, or upon affidavits if the complaint in the one case, or the affidavits in the other, show satisfactorily that sufficient grounds exist therefor." Code Civ. Proc. § 527(a). "The purpose of a preliminary injunction is to preserve the status quo pending final resolution upon a trial." *Grothe v. Cortlandt Corp.* (1992) 11 Cal.App.4th 1313, 1316. Preliminary injunctive relief requires the use of competent evidence to create a sufficient factual showing on the grounds for relief. *See, e.g., ReadyLink Healthcare v. Cotton* (2005) 126 Cal.App.4th 1006, 1016; *Ancora-Citronelle Corp. v. Green* (1974) 41 Cal.App.3d 146, 150. Injunctive relief may be granted based on a verified complaint, sworn declarations, affidavits, or any combination of the foregoing provided facts sufficient for relief are contained there. Code Civ. Proc. §§ 527(a), (h); 2009; 2015.5.

The trial court considers two factors in determining whether to issue a preliminary injunction: (1) the likelihood the plaintiff will prevail on the merits of its case at trial, and (2) the interim harm the plaintiff is likely to sustain if the injunction is denied as compared to the harm the defendant is likely to suffer if the court grants a preliminary injunction. Code Civ. Proc. § 526(a). The balancing of harm between the parties "involves consideration of such things as the inadequacy of other remedies, the degree of irreparable harm, and the necessity of preserving the status quo." *Husain v. McDonald's Corp.* (2012) 205 Cal.App.4th 860, 866-867.

"The decision to grant a preliminary injunction rests in the sound discretion of the trial court [B]efore the trial court can exercise its discretion the applicant must make a prima facie showing of entitlement to injunctive relief. The applicant must demonstrate a real threat of immediate and irreparable injury." *Triple A Machine Shop, Inc. v. State of Cal.* (1989) 213 Cal.App.3d 131, 138. "[A]n injunction is an unusual or extraordinary equitable remedy which will not be granted if the remedy at law (usually damages) will adequately compensate the injured plaintiff," and the party seeking injunctive relief bears the burden to prove its absence. *Department of Fish & Game v. Anderson-Cottonwood Irrigation Dist.* (1992) 8 Cal.App.4th 1554, 1564-1565.

Likelihood of Plaintiff Prevailing on the Merits

A preliminary injunction may not issue unless it is "reasonably probable that the moving party will prevail on the merits." *San Francisco Newspaper Printing Co., Inc. v. Superior Court* (1985) 170 Cal.App.3d 438, 442; *see Costa Mesa City Employees' Association v. City of Costa Mesa* (2012) 209 Cal.App.4th 298, 309 (no injunction may issue unless there is at least "some possibility" of success).